

FILE OF THE COUNCIL NO. \_\_\_\_\_

2024

AN ORDINANCE

LEVYING THE PROPERTY TAX MILLAGE FOR THE YEAR 2025.

**SECTION 1.** Be it ordained by the Council of the City of Scranton, that Section 1 of File of the Council No. 100, 1976 shall be amended to read as follows:

"The Council of the City of Scranton ordains that for the purpose of defraying the expense of the City of Scranton for the fiscal year commencing on the first day of January, 2025 and certain other deficiencies prior thereto, a tax is hereby levied on all real, personal and mixed property within the limits of the City of Scranton, Pennsylvania taxable according to the laws of the Commonwealth of Pennsylvania as follows:

To provide for the payment of general expenses and to provide for the various interest and sinking funds as required by law, there is hereby levied on each thousand dollar of valuation in the Scranton Twenty-Four Ward area:

**For General Expense and Sinking Fund purposes:**

|                          |                        |
|--------------------------|------------------------|
| Levy on all Land         | .24919765 millage rate |
| Levy on all Improvements | .05260679 millage rate |

The total levy for general and special purpose is two hundred forty-nine dollars and .19765 cents (\$249.19765) on each one thousand dollars of said valuation of land, and fifty-two dollars and .60679 cents (\$52.60679) on each one thousand dollars of said valuation on all buildings."

The total levy for 2025 is 301.80444 mills.

**SECTION 2.** Be it ordained further that the dedicated millage for debt service is eliminated and a dedicated percentage of revenues is imbedded thereby meeting the intent of a segregated stream of revenues assigned to debt service. To address the continued dedication of real estate tax revenue, the Single Tax Office will be notified, and the amended legislation will certify, that 25% of real estate tax revenue on a current year basis will be remitted to the City's Single Point Paying Agent to meet the budgeted debt service requirement for that fiscal year.

**SECTION 3.** This Ordinance shall become effective January 1, 2025.

**SECTION 4.** In all other respects, File of the Council No. 100, 1976 shall remain in full force and effect.

**SECTION 5.** If any section, clause, provision or portion of this Ordinance shall be held invalid or unconstitutional by any Court of competent jurisdiction, such decision shall not affect any other section, clause, provision or portion of this ordinance so long as it remains legally enforceable minus the invalid portion. The City reserves the right to amend this ordinance or

any portion thereof from time to time as it shall deem advisable in the best interests of the promotion of the purposes and intent of this Ordinance and the effective administration thereof.

**SECTION 6.** This Ordinance is enacted by the Council of the City of Scranton under the authority of the Act of the Legislature, April 13, 1972, Act No. 62, known as the "Home Rule Charter and Optional Plans Law", and any other applicable law arising under the laws of the State of Pennsylvania.

# RECEIVED

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## DEPARTMENT OF LAW

City Hall | 340 North Washington Avenue | Scranton, PA 18503 | 570.348.4105

OFFICE OF CITY  
COUNCIL/CITY CLERK

### MEMORANDUM FOR CITY COUNCIL LEGISLATION

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| Is this a Resolution or Ordinance? | Ordinances – Tax & Fee Bundle for 2025                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Title of Legislation               | <ol style="list-style-type: none"> <li>1. LEVYING THE PROPERTY TAX MILLAGE FOR THE YEAR 2025.</li> <li>2. MAINTAINING THE WASTE DISPOSAL AND COLLECTION FEE AT \$300.</li> <li>3. LEVYING LOCAL SERVICE TAX (LST) AT \$156.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Department(s)                      | Business Administration                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| Legislation Description            | <p><u>Taxes and Fees</u></p> <ul style="list-style-type: none"> <li>• Under the 2025 Budget Proposal, City residents will see <u>no increase in any of their City tax rates or to their refuse fee for 2025.</u></li> </ul> <p><u>Technical Change to City Practice</u></p> <ul style="list-style-type: none"> <li>• State law requires the City to enact legislation every year levying the real estate tax, but not for levying any Act 511 taxes or any fees, unless to change those tax or fee rates.</li> <li>• The City's past practice has been to enact legislation every year levying not just the real estate tax, but also all Act 511 taxes and the refuse fee.</li> <li>• Last year's Earned Income Tax, Payroll Preparation Tax, and Realty Transfer Tax ordinances explicitly authorize the City to continue levying those taxes at the same rate in future years, so no legislation is needed for those taxes this year.</li> <li>• This year's LST and refuse fee legislation will allow the City to maintain those rates indefinitely, unless and until amended by ordinance, which will avoid unnecessary legislation in the future.</li> </ul> |
| Financial Impact                   | See the 2025 Budget for the financial impact of the taxes and fee themselves.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Other Notes                        | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |